



Manage legal requirements for business compliance

D1.HML.CL10.05

D1.HRM.CL9.14

D2.TRM.CL9.07

Assessor Manual



Manage legal requirements for business compliance

D1.HML.CL10.05

D1.HRM.CL9.14

D2.TRM.CL9.07

Assessor Manual

Project Base

William Angliss Institute of TAFE
555 La Trobe Street
Melbourne 3000 Victoria
Telephone: (03) 9606 2111
Facsimile: (03) 9670 1330

Acknowledgements

Project Director:	Wayne Crosbie
Project Manager	Jim Irwin
Chief Writer:	Alan Hickman
Subject Writer:	Nick Hyland
Editor:	Jim Irwin
DTP/Production:	Daniel Chee, Mai Vu, Cindy Curran

The Association of Southeast Asian Nations (ASEAN) was established on 8 August 1967. The Member States of the Association are Brunei Darussalam, Cambodia, Indonesia, Lao PDR, Malaysia, Myanmar, Philippines, Singapore, Thailand and Viet Nam.

The ASEAN Secretariat is based in Jakarta, Indonesia.

General Information on ASEAN appears online at the ASEAN Website: www.asean.org.

All text is produced by William Angliss Institute of TAFE for the ASEAN Project on “Toolbox Development for Tourism Labour Divisions for Travel Agencies and Tour Operations”.

This publication is supported by the Australian Government’s aid program through the ASEAN-Australia Development Cooperation Program Phase II (AADCP II).

Copyright: Association of Southeast Asian Nations (ASEAN) 2015.

All rights reserved.

Disclaimer

Every effort has been made to ensure that this publication is free from errors or omissions. However, you should conduct your own enquiries and seek professional advice before relying on any fact, statement or matter contained in this book. The ASEAN Secretariat and William Angliss Institute of TAFE are not responsible for any injury, loss or damage as a result of material included or omitted from this course. Information in this module is current at the time of publication. Time of publication is indicated in the date stamp at the bottom of each page.

Some images appearing in this resource have been purchased from stock photography suppliers Shutterstock and iStockphoto and other third party copyright owners and as such are non-transferable and non-exclusive. Clip arts, font images and illustrations used are from the Microsoft Office Clip Art and Media Library. Some images have been provided by and are the property of William Angliss Institute.

Additional images have been sourced from Flickr and SXC and are used under Creative Commons licence: <http://creativecommons.org/licenses/by/2.0/deed.en>

File name: AM_Manage_legal_req_for_bus_comp_150115

Table of contents

Competency Based Assessment (CBA) – An Introduction for Assessors.....	1
Competency standard.....	11
Oral questions.....	19
Written questions	23
Answers to written questions	29
Observation checklist.....	35
Third Party Statement.....	39
Competency recording sheet	41

Competency Based Assessment (CBA) – An Introduction for Assessors

Assessment is the process of identifying a participant's current knowledge, skills and attitudes sets against all elements of competency within a unit of competency.

Suggested Assessment Methods

For each unit of competency a number of assessment tools have been identified including:

- Work Projects
- Oral Questions
- Written Questions
- Third Party Statements
- Observation Checklists.

Instructions and Evidence Recording Sheets have been identified in this Assessment Manual for use by Assessors.

Alternative Assessment Methods

Whilst the above mentioned assessment methods are suggested assessment methods, the assessor may use an alternate method of assessment taking into account:

- a) The nature of the unit
- b) The strengths of participants
- c) The number of participants in the class
- d) Time required to complete assessments
- e) Time dedicated to assessment
- f) Equipment and resources required.

Alternate assessment methods include:

- Practical demonstrations
- Practical demonstrations in simulated work conditions
- Problem solving
- Portfolios of evidence
- Critical incident reports
- Journals
- Oral presentations
- Interviews
- Videos
- Visuals/slides/audiotapes

- Case studies
- Log books
- Projects and Role plays
- Group projects
- Recognition of Prior Learning.

Whilst there is no specific instruction or evidence collection documents for all the alternative assessment methods, assessors can record competency in the 'Other' section within the 'Competency Recording Sheet'.

Selection of Assessment Methods

Each assessor will determine the combination of Assessment Methods to be used to determine Competency for each Competency Unit on a student by student basis.

'Sufficient' evidence to support the 'Pass Competent'/'Not Yet Competent' decision must be captured.

In practice this means a minimum of 2 – 3 Assessment Methods for each candidate for each Competency Element is suggested.

At least one method should provide evidence of practical demonstration of competence.

The following assessment methods deemed to provide evidence of practical demonstration of competence include:

- Practical Work Projects
- Third Party Statement
- Observation Checklist.

Assessing Competency

Competency based assessment does not award grades, but simply identifies if the participant has the knowledge, skills and attitudes to undertake the required task to the specified standard.

Therefore, when assessing competency, an assessor has two possible results that can be awarded:

- 'Pass Competent' (PC)
- 'Not Yet Competent' (NYC).

Pass Competent (PC)

If the participant is able to successfully answer or demonstrate what is required, to the expected standards of the performance criteria, they will be deemed as 'Pass Competent' (PC).

The assessor will award a 'Pass Competent'(PC) if they feel the participant has the necessary knowledge, skills and attitudes in all assessment tasks for a unit.

Not Yet Competent' (NYC)

If the participant is unable to answer or demonstrate competency to the desired standard, they will be deemed to be 'Not Yet Competent' (NYC).

This does not mean the participant will need to complete all the assessment tasks again. The focus will be on the specific assessment tasks that were not performed to the expected standards.

The participant may be required to:

- a) Undertake further training or instruction
- b) Undertake the assessment task again until they are deemed to be 'Pass Competent'.

Regional Qualifications Framework and Skills Recognition System

The 'Regional Qualifications Framework and Skills Recognition System', also known as the 'RQFSRS' is the overriding educational framework for the ASEAN region.

The purpose of this framework is to provide:

- A standardised teaching and assessment framework
- Mutual recognition of participant achievement across the ASEAN region. This includes achievement in individual Units of Competency or qualifications as a whole.

The role of the 'RQFSRS' is to provide, ensure and maintain 'quality assurance' across all countries and educational providers across the ASEAN region.

Recognition of Prior Learning (RPL)

Recognition of Prior Learning is the process that gives current industry professionals who do not have a formal qualification, the opportunity to benchmark their extensive skills and experience against the standards set out in each unit of competency/subject.

This process is a learning and assessment pathway which encompasses:

- Recognition of Current Competencies (RCC)
- Skills auditing
- Gap analysis and training
- Credit transfer.

Code of Practice for Assessors

This Code of Practice provides:

- Assessors with direction on the standard of practice expected of them
- Candidates with assurance of the standards of practice expected of assessors
- Employers with assurance of the standards maintained in the conduct of assessment.

The Code detailed below is based on the International Code of Ethics and Practice (The National Council for Measurement in Education [NCME]):

- The differing needs and requirements of the person being assessed, the local enterprise and/or industry are identified and handled with sensitivity
- Potential forms of conflict of interest in the assessment process and/or outcomes are identified and appropriate referrals are made, if necessary
- All forms of harassment are avoided throughout the planning, conducting, reviewing and reporting of the assessment outcomes

- The rights of the candidate are protected during and after the assessment
- Personal and interpersonal factors that are not relevant to the assessment of competency must not influence the assessment outcomes
- The candidate is made aware of rights and process of appeal
- Evidence that is gathered during the assessment is verified for validity, reliability, authenticity, sufficiency and currency
- Assessment decisions are based on available evidence that can be produced and verified by another assessor
- Assessments are conducted within the boundaries of the assessment system policies and procedures
- Formal agreement is obtained from both the candidate and the assessor that the assessment was carried out in accordance with agreed procedures
- The candidate is informed of all assessment reporting processes prior to the assessment
- The candidate is informed of all known potential consequences of decisions arising from an assessment, prior to the assessment
- Confidentiality is maintained regarding assessment results
- The assessment results are used consistently with the purposes explained to the candidate
- Opportunities are created for technical assistance in planning, conducting and reviewing assessment procedures and outcomes.

Instructions and Checklist for Assessors

Instructions

General instructions for the assessment:

- Assessment should be conducted at a scheduled time that has been notified to the candidate
- Facilitators must ensure participants are made aware of the need to complete assessments and attend assessment sessions
- If a participant is unable to attend a scheduled session, they must make arrangements with the Assessor to undertake the assessment at an alternative time
- At the end of the assessment the Assessor must give feedback and advise the participant on their PC/NYC status
- Complete the relevant documentation and submit to the appropriate department.

Preparation

- Gain familiarity with the Unit of Competency, Elements of Competency and the Performance Criteria expected
- Study details assessment documentation and requirements
- Brief candidate regarding all assessment criteria and requirements.

Briefing Checklist

- Begin the assessment by implementing the following checklist and then invite the candidate to proceed with assessment.

Checklist for Assessors

Prior to the assessment I have:	Tick (✓)	Remarks
Ensured the candidate is informed about the venue and schedule of assessment.		
Received current copies of the performance criteria to be assessed, assessment plan, evidence gathering plan, assessment checklist, appeal form and the company's standard operating procedures (SOP).		
Reviewed the performance criteria and evidence plan to ensure I clearly understood the instructions and the requirements of the assessment process.		
Identified and accommodated any special needs of the candidate.		
Checked the set-up and resources for the assessment.		
During the assessment I have:		
Introduced myself and confirmed identities of candidates.		
Put candidates at ease by being friendly and helpful.		
Explained to candidates the purpose, context and benefits of the assessment.		
Ensured candidates understood the assessment process and all attendant procedures.		
Provided candidates with an overview of performance criteria to be assessed.		
Explained the results reporting procedure.		
Encouraged candidates to seek clarifications if in doubt.		
Asked candidates for feedback on the assessment.		
Explained legal, safety and ethical issues, if applicable.		
After the assessment I have:		
Ensured candidate is given constructive feedback.		
Completed and signed the assessment record.		
Thanked candidate for participating in the assessment.		

Instructions for Recording Competency

Specifications for Recording Competency

The following specifications apply to the preparation of Evidence Gathering Plans:

- A Competency Recording Sheet must be prepared for each candidate to ensure and demonstrate all Performance Criteria and Competency Elements are appropriately assessed. This Sheet indicates how the Assessor will gather evidence during their assessment of each candidate
- This Competency Recording Sheet is located at the end of the Assessment Plan
- It is the overriding document to record competency
- The Assessor may vary the Competency Recording Sheet to accommodate practical and individual candidate and/or workplace needs
- Assessor must place a tick (✓) in the 'Assessment Method' columns to identify the methods of assessment to be used for each candidate
- Multiple Competency Elements/Performance Criteria may be assessed at the one time, where appropriate
- The assessor and participant should sign and date the Competency Recording Sheet, when all forms of evidence and assessment have been completed
- The assessor may provide and feedback or clarify questions which the participant may have in regards to the assessment grade or findings
- All documents used to capture evidence must be retained, and attached to the Competency Recording Sheet for each candidate for each Competency Unit.

Instructions for Different Assessment Methods

Specifications for Work Project Assessment

These guidelines concern the use of work projects.

The work projects identified in the Training Manuals involve a range of tasks, to be performed at the discretion of the Assessor.

Work project tasks can be completed through any form of assessment as identified in the Trainer and Trainee Manuals and stated at the start of this section.

Assessors should follow these guidelines:

- Review the Work Projects at the end of each 'Element of Competency' in the Trainee Manual to ensure you understand the content and what is expected
- Prepare sufficient resources for the completion of work activities including:
 - Time – whether in scheduled delivery hours or suggested time participants to spend outside of class hours
 - Resources – this may involve technical equipment, computer, internet access, stationery and other supplementary materials and documents
- Prepare assessment location (if done in class) making it conducive to assessment
- Explain Work Projects assessment to candidate, at the start of each Element of Competency. This ensures that participants are aware of what is expected and can collate information as delivery takes place

- Assessors can use the following phrase as a guide (where an 'X' is identified, please input appropriate information):
 "At the end of each Element of Competency there are Work Projects which must be completed. These projects require different tasks that must be completed.
 These work projects are part of the formal assessment for the unit of competency titled X:
- You are required to complete these activities:
 - Using the 'X' method of assessment*
 - At 'X' location*
 - You will have 'X time period' for this assessment*
 - You are required to compile information in a format that you feel is appropriate to the assessment
 - Do you have any questions about this assessment?"
- Commence Work Project assessment:
 - The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
 - Participants complete work projects in the most appropriate format
 - Participants must submit Work Project evidence to the assessor before the scheduled due date
- Assessor must assess the participant's evidence against the competency standards specified in each Element of Competency and their own understanding. The assessor can determine if the participant has provided evidence to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Oral Question Assessment

These guidelines concern the use of oral questioning.

Assessors should follow these guidelines.

- Prepare Assessment Record for Oral Questioning. One record for each candidate:
 - Enter Student name
 - Enter Assessor name
 - Enter Location
- Familiarise self with Questions to be asked
- Prepare assessment location (table and chairs) making it conducive to assessment
- Explain Oral Questioning assessment to candidate, using the following phrase as a guide (where a 'X' is identified, please input appropriate information):
"These oral questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability and I will record whether or not you have answered correctly.

We have 60 minutes for this assessment.

- I will give you feedback at the end of the assessment
- Do you have any questions about this assessment?”
- Commence Oral Questioning assessment:
 - Complete Assessment Record for the Oral Questioning by:
 - a) Ticking PC or NYC, as appropriate
 - b) Entering ‘Remarks’ as required
 - c) Completing Oral Questioning within 60 minutes
- Complete Oral Questioning and provide feedback to candidate
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Written Question Assessment

These guidelines concern the use of written questioning.

Assessors should follow these guidelines:

- Familiarise self with Questions and Answers provided
- Print and distribute copies of ‘Written Questions’ for participants. Ideally this should take place with adequate time for participants to answer all questions before the expected due date
- Explain Written Questioning assessment to candidate, using the following phrase as a guide (where a ‘X’ is identified, please input appropriate information):

“These written questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability.

You may refer to your subject materials, however where possible try to utilise your existing knowledge when answering questions.

Where you are unsure of questions, please ask the Assessor for further instruction. This may be answering the question orally or asking the assessor to redefine the question.

We have X time for this assessment:

- The due date for completion of this assessment is X
- On this date you must forward the completed questions to the assessor by X time on the date of X
- Do you have any questions about this assessment?”
- The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
- Participants may record written answers (where possible)
- Participants must submit the written answers to the assessor before the scheduled due date

- Assessor must assess the participant's written answers against the model answers provided as a guide, or their own understanding. The assessor can determine if the participant has answered the questions to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Observation Checklist

These specifications apply to the use of the Observation Checklist in determining competency for candidates.

Only an approved assessor is authorised to complete the Observation Checklist.

The assessor is required to observe the participant, ideally in a simulated environment or their practical workplace setting and record their performance (or otherwise) of the competencies listed on the Observation Checklist for the Competency Unit.

To complete the Observation Checklist the Assessor must:

- Insert name of candidate
- Insert assessor name
- Insert identify of location where observations are being undertaken
- Insert date/s of observations – may be single date or multiple dates
- Place a tick in either the 'Yes' or 'No' box for each listed Performance Criteria to indicate the candidate has demonstrated/not demonstrated that skill
- Provide written (and verbal) feedback to candidate – as/if appropriate
- Sign and date the form
- Present form to candidate for them to sign and date
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Observation Checklist.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the participant.

Specifications for Third Party Statement

These specifications relate to the use of a relevant workplace person to assist in determining competency for candidates.

The Third Party Statement is to be supplied by the assessor to a person in the workplace who supervises and/or works closely with the participant.

This may be their Supervisor, the venue manager, the Department Manager or similar.

The Third Party Statement asks the Supervisor to record what they believe to be the competencies of the participant based on their workplace experience of the participant. This experience may be gained through observation of their workplace performance, feedback from others, inspection of candidate's work etc.

A meeting must take place between the Assessor and the Third Party to explain and demonstrate the use of the Third Party Statement.

To complete the Third Party Verification Statement the Assessor must:

- Insert candidate name
- Insert name and contact details of the Third Party
- Tick the box to indicate the relationship of the Third Party to the candidate
- Present the partially completed form to the Third Party for them to finalise
- Collect the completed form from the Third Party
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Third Party Statement.

The Third Party must:

- Record their belief regarding candidate ability/competency as either:
 - Pass Competent = Yes
 - Not Yet Competent = No
 - Unsure about whether candidate is competent or not = Not Sure
- Meet briefly with the assessor to discuss and/or clarify the form.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the candidate.

A separate Third Party Statement is required for each Competency Unit undertaken by the candidate.

Competency standard

UNIT TITLE: MANAGE LEGAL REQUIREMENTS FOR BUSINESS COMPLIANCE		NOMINAL HOURS: 90
UNIT NUMBER: D1.HML.CL10.05 D1.HRM.CL9.14 D2.TRM.CL9.07		
UNIT DESCRIPTOR: This unit deals with the skills and knowledge required to manage legal requirements for business compliance in a range of settings within the six labour divisions of the hotel and travel industries.		
ELEMENTS AND PERFORMANCE CRITERIA	UNIT VARIABLE AND ASSESSMENT GUIDE	
Element 1. Research the legal information required for business compliance 1.1 Identify sources of legal information and advice correctly 1.2 Access, select and analyse information for relevance to the business 1.3 Record and distribute information appropriately Element 2. Ensure compliance with legal requirements 2.1 Assess the need for legal advice and seek assistance where appropriate 2.2 Share information with appropriate work colleagues in a timely manner 2.3 Organise information updates and training for colleagues and staff where appropriate	Unit Variables The Unit Variables provide advice to interpret the scope and context of this unit of competence, allowing for differences between enterprises and workplaces. It relates to the unit as a whole and facilitates holistic assessment. This unit applies to all industry sectors that manage legal requirements for business compliance within the labour divisions of the hotel and travel industries and may include: 1. Front Office 2. Housekeeping 3. Food and Beverage Service 4. Food Production 5. Travel Agencies 6. Tour Operation <i>Sources of legal information</i> may include: • Reference books • Media	

2.4 Establish and monitor <i>workplace systems and procedures to ensure compliance with legal requirements</i> 2.5 Identify aspects of operations which may infringe <i>licensing</i> laws and solicit advice on how to develop and implement modifications Element 3. Update legal knowledge 3.1 Use informal and formal <i>research</i> to update the legal knowledge required for business compliance 3.2 Share updated knowledge with colleagues and incorporate into workplace planning and operations	• Industry and/or employer associations • Industry journals • Internet • Customers and suppliers • Legal experts • Informal/formal research • Government agencies. <i>Colleagues</i> may include: • Supervisors or managers • Human resources staff • Co-workers • Specialist staff • Consultants • Contractors. <i>Workplace systems and procedures to ensure compliance with legal requirements</i> may refer to: • Recruitment, termination and other human resource management issues • Training practices • Approval processes and protocols for various work activities • General work practices and work organisation approaches • Workplace design • Distribution of information within the enterprise • Signage
---	---

	Occupational health, welfare and safety. <i>Licensing</i> refers to any license required to operate a travel or hotel business, and may relate to: • Liquor • Gaming • Sale of travel products • Security • Trades • Access to protected areas • Quotations. <i>Research</i> may relate to: • Seeking specialist advice • Internet • Literature • Industry publications • Associations. Assessment Guide The following skills and knowledge must be assessed as part of this unit: • Knowledge of the legal responsibilities/liabilities of managers and directors within varying business structures • Knowledge of consumer protection and trade practices, including key features of trade practices and fair trading legislation and the key areas in which travel and hotel businesses must ensure compliance
--	---

	• Knowledge of licensing, including licenses needed by various businesses and individuals within those businesses, license application procedures, ongoing requirements to maintain license, auditing and inspection regimes, reasons for cancellation of licenses • Knowledge of contract, including differences between contracts, the impacts of contract law on operators including the specific terms and obligations of contract, methods of contractual agreement, exclusion clauses and termination of contracts • Knowledge of insurance, such as key business insurances required by different hotel and travel businesses, including public liability and workers compensation • Knowledge of superannuation, i.e. Employer responsibilities in relation to payment of superannuation for employees • Knowledge of industrial relations, including rights and responsibilities of employees and employers under industrial relations legislation • Knowledge of taxation i.e. Overview of statutory reporting requirements for businesses • Knowledge of equal employment opportunity and anti-discrimination, including key features, employer responsibilities and ramification of operating contrary to legislation • Knowledge of specific legislation and local regulations impacting on particular hotel or travel sectors or contexts, e.g. Responsible Service of Alcohol, Responsible Conduct of Gaming, The Crimes (Child Sex Tourism) Amendment Act, Occupational health, safety and welfare, and European Economic Directive of Foreign Travel. Linkages To Other Units • Lead and manage people • Manage and implement small projects • Develop and implement a business plan • Develop new products and services • Plan and establish systems and procedures
--	--

- Maintain financial standards and records
- Manage physical assets and infrastructure.

Critical Aspects of Assessment

Evidence of the following is essential:

- Demonstrated ability to conduct research in order to source and access legal information and advice in particular industry sectors
- Demonstrated ability to apply general knowledge of legislation that affects business operations in a particular industry sector
- Demonstrated ability to access and update the legal information required for business compliance or seek professional assistance on legal matters
- Demonstrated ability to prepare reports detailing how legal issues were identified and addressed in the conduct of a particular project
- Demonstrated ability to address the legal compliance requirements of a hotel or travel business.

Context of Assessment

This unit may be assessed on or off the job:

- Assessment must relate to the individual's work area, job role and area of responsibility
- Assessment must include project or work activities that allow the candidate address compliance requirements of a business operating within a hotel and travel industry context
- Assessment activities that require the candidate to effectively manage legal requirements for business compliance
- Assessment activities that require the candidate ability to use knowledge of legislation that affects business operations in a particular industry sector.

	Resource Implications Training and assessment to include access to a real or simulated workplace that provides the candidate with an opportunity to demonstrate application of legal knowledge to specific tourism and hospitality workplace situations and problems; and access to workplace standards, procedures, policies, guidelines, tools and current legislation Assessment Methods The following methods may be used to assess competency for this unit: • Case studies • Observation of practical candidate performance • Oral and written questions • Portfolio evidence • Problem solving • Third party reports completed by a supervisor • Project and assignment work. Key Competencies in this Unit <i>Level 1 = competence to undertake tasks effectively</i> <i>Level 2 = competence to manage tasks</i> <i>Level 3 = competence to use concepts for evaluating</i>
--	---

	Key Competencies	Level	Examples
	Collecting, organising and analysing information	3	Review documentation published by a government department to determine the requirements for a given enterprise
	Communicating ideas and information	3	Develop a briefing document for management, detailing the enterprise approach to various legal issues
	Planning and organising activities	3	Conduct a review of business operations to analyse the ways in which the enterprise ensures it meets legal requirements
	Working with others and in teams	2	Consult with and provide appropriate training for colleagues in relation to legal requirements
	Using mathematical ideas and techniques	0	
	Solving problems	3	Develop and implement a system to correct a situation where the enterprise has failed to fully take account of a legal requirement
	Using technology	1	Use a computer to access current legislation

Oral questions

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage legal requirements for business compliance D1.HML.CL10.05 D1.HRM.CL9.14 D2.TRM.CL9.07
Instructions	1. Ask student questions from the attached list to confirm knowledge, as necessary 2. Place tick in boxes to reflect student achievement (Pass Competent 'PC' or Not Yet Competent 'NYC') 3. Write short-form student answer in the space provided for each question.

Questions	Response	
	PC	NYC
1. Why is important to identify sources of legal information?	☐	☐
2. Why is it important to comply with legal requirements?	☐	☐

Questions	Response	
	PC	NYC
3. Why is it important to share and distribute legal information with stakeholders?	☐	☐
4. Why is it important to get legal advice when identifying legal requirements on a tourism business?	☐	☐
5. Which stakeholders should be provided with legal information? Why?	☐	☐

Questions	Response	
	PC	NYC
6. Why is it important to organise information updates and training for colleagues and staff to update their legal knowledge?	☐	☐
7. What is the definition of a 'procedure'? What examples of procedures are developed to ensure legal compliance?	☐	☐
8. What are common breaches of legislation in a tourism business? What are the causes of these breaches?	☐	☐

Questions	Response	
	PC	NYC
9. What are reasons for changes to legislation? Provide an example of a change and how it has affected a tourism organisation.	☐	☐
10. How often should information be shared with colleagues?	☐	☐

Written questions

Manage legal requirements for business compliance –

D1.HML.CL10.05

D1.HRM.CL9.14

D2.TRM.CL9.07

Student Name: _____

Answer all the following questions and submit to your Trainer.

1. What are three sources of legal information?

2. What are steps that can be taken in determining how regulations apply to the business?

3. Identify three general business areas to which legal requirements apply?

4. What is the principle of 'duty of care'?

5. What is the definition of 'employment relations'? Identify two elements of employment relations.

6. What are the minimum requirements that must be included in employment agreements?

7. What are examples of Equal Employment Opportunity (EEO) laws?

8. What is the definition of sexual harassment? What can you do to prevent it in the workplace?

9. What are the principles of Occupational Health and Safety (OHS) legislation?

10. What are the tasks associated with preparing and sharing legal information?

11. What are steps associated with analysing impact of regulations on business?

12. What are the ways you can share legal information with stakeholders?

13. What are methods of staff training that can be used to update stakeholders in legal knowledge?

14. What is the definition of a 'policy'? What examples of policies are developed to ensure legal compliance?

15. What are ethics and why are they important to have in a business?

16. What are possible penalties for breach of legal requirements?

17. What are strategies to mitigate risk of non-compliance?

18. What are three types of changes to legislation?

19. What are methods to stay up-to-date with legislation?

20. What are examples of practical strategies to ensure legal compliance?

Answers to written questions

Manage legal requirements for business compliance – D1.HML.CL10.05

D1.HRM.CL9.14

D2.TRM.CL9.07

The following are model answers only – Trainers/Assessors must use discretion when determining whether or not an answer provided by a Student is acceptable or not.

1. What are three sources of legal information?

- Sources of legal information
- Internet
- Industry or employer associations
- Government agencies
- Reference books
- Media
- Industry journals
- Customers and suppliers
- Legal experts
- Informal/formal research
- Legal glossaries
- 'Frequently Asked Questions
- Register online.

2. What are steps that can be taken in determining how regulations apply to the business?

- Reading and examining regulations
- Taking training courses
- Contacting the appropriate authority
- Meeting with local officials.

3. Identify three general business areas to which legal requirements apply?

- Business establishment
- Business operation
- Licensing
- Consumer protection and trade practices
- Duty of Care
- Fair trading legislation
- Food
- Liquor
- Tobacco

- Gaming
- Employment relations
- Employment of foreign workers
- Superannuation / Pension Funds
- Contributory Negligence
- Personal Injuries legislation
- Contracts
- Income & company taxation
- Goods and Services taxation
- Financial recording and management
- Anti-corruption
- Copyright
- Occupational health and safety (OHS)
- Fire Safety
- Environmental legislation
- Insurance requirements.

4. What is the principle of ‘duty of care’?

A business must take reasonable care to ensure that ‘foreseeable harm’ does not occur to people.

5. What is the definition of ‘employment relations’? Identify two elements of employment relations.

It is all facets of the relationship between the employer and the employee.

Elements include:

- Terms and conditions of employment
- Employee benefits
- Workplace health and safety issues
- Enterprise bargaining
- Remuneration
- Employer/employee rights and responsibilities.

6. What are the minimum requirements that must be included in employment agreements?

- Pay
- Hours of work
- Annual leave
- Personal leave
- Unpaid parental leave.

7. **What are examples of Equal Employment Opportunity (EEO) laws?**
 - Human Rights and Equal Opportunity
 - Affirmative Action (Equal Employment Opportunity for Women)
 - Racial Discrimination
 - Sex Discrimination
 - Disability Discrimination
 - Equal Opportunity Act.
8. **What is the definition of sexual harassment? What can you do to prevent it in the workplace?**
 - Sexual harassment is an unwelcome sexual advance or request for sexual favours or unwanted conduct of a sexual nature. It is NOT mutual attraction between people
 - Answers to prevent it will be varied.
9. **What are the principles of Occupational Health and Safety (OHS) legislation?**
 - To secure the health, safety and welfare of employees and others
 - To eliminate risks to the health, safety or welfare
 - To ensure that the health and safety of members of the public is not placed at risk
 - To provide for the involvement when implementation of health, safety and welfare standards.
10. **What are the tasks associated with preparing and sharing legal information?**
 - Determine 'highly visible' documents
 - Refer to previously prepared documents
 - Involve all stakeholders
 - Prepare a draft plan for each legal requirements
 - Circulate it for comment and feedback
 - Revise documents or legal information
 - Circulate and communicate documents.
11. **What are steps associated with analysing impact of regulations on business?**
 - Assessing the impact on trade
 - Assessing the expense associated with compliance
 - Talking to customers
 - Determine your individual establishment response
 - Provide feedback to government agencies
 - Seeking legal advice.

12. What are the ways you can share legal information with stakeholders?

- SOP's
- Meetings
- Training sessions
- Included in orientation
- Discussions
- Shift briefings.

13. What are methods of staff training that can be used to update stakeholders in legal knowledge?

- Induction and orientation
- In-house training
- External training
- Staff meetings
- Staff briefings
- Personal observation
- Written and practical testing
- Refresher training.

14. What is the definition of a 'policy'? What examples of policies are developed to ensure legal compliance?

A policy is a statement of intent, principle or direction regarding a specific area of activity within the organisation.

Types of policies will vary, but may include:

- Occupational health and safety
- Client and company responsibilities
- Training
- Recruitment
- Business ethics
- Compliance with legislation
- Public relations
- Vehicle control
- Equipment use
- Record keeping
- Financial management
- Emergency response
- Work procedures
- Confidentiality and privacy
- Quality assurance.

15. What are ethics and why are they important to have in a business?

- Ethical requirements relate to issues about which a personal judgement has to be made regarding the way the business elects to conduct its business
- Answers of why they are important to a business will vary.

16. What are possible penalties for breach of legal requirements?

- The precise nature of the penalties applicable, including the type of penalty or the amount of the fine for breaching regulations will depend on:
- The legislation which has been breached
- The nature and severity of the offence
- Whether or not it is a first offence, or a repeat offence
- Whether or not a mandatory minimum fine or other penalty applies
- Whether multiple offences have occurred at the same time.

17. What are strategies to mitigate risk of non-compliance?

- Using evidence as the basis for action
- Seeking input from the authorities
- Revising policies and procedures
- Implement training
- Improve supervision and management
- Review your personal actions
- Provide necessary resources
- Revamp record keeping
- Insure against the results of non-compliance

18. What are three types of changes to legislation?

- Repealed
- Amended
- Introduced.

19. What are methods to stay up-to-date with legislation?

- Prepare a calendar or schedule for compliance
- Liaising with authorities
- Maintain personal contact with key individuals at government agencies
- Register to receive newsletters, advisories, alerts, up-dates etc. from the authorities
- Joining professional bodies or associations
- Develop a network of industry contacts.
- Attending meetings of industry bodies and associations
- Liaising with others in the industry
- Seeking advice from legal and professional sources
- Reading publications

- Allocate specific individuals to discharge nominate compliance responsibilities
- Document compliance information
- Conduct annual reviews.

20. What are examples of practical strategies to ensure legal compliance?

Answers will vary, however they can be based on the following elements:

- Information provision
- Resource provision
- Practical components.

Refer to TM Pages 77-79 for examples of possible answers

Observation checklist

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage legal requirements for business compliance D1.HML.CL10.05 D1.HRM.CL9.14 D2.TRM.CL9.07
Dates of observation	
Instructions	- Over a period of time observe the student completing each of the following tasks: - Research the legal information required for business compliance - Ensure compliance with legal requirements - Update legal knowledge - Enter the date on which the tasks were undertaken - Place a tick in the box to show they completed each aspect of the task to the standard expected in the enterprise - Complete the feedback sections of the form, if required.

Did the candidate	Yes	No
Element 1: Research the legal information required for business compliance		
Identify sources of legal information and advice correctly	☐	☐
Access, select and analyse information for relevance to the business	☐	☐
Record and distribute information appropriately	☐	☐
Element 2: Ensure compliance with legal requirements		
Assess the need for legal advice and seek assistance where appropriate	☐	☐
Share information with appropriate work colleagues in a timely manner	☐	☐
Organise information updates and training for colleagues and staff where appropriate	☐	☐

Did the candidate	Yes	No
Establish and monitor workplace systems and procedures to ensure compliance with legal requirements	☐	☐
Identify aspects of operations which may infringe licensing laws and solicit advice on how to develop and implement modifications	☐	☐
Element 3: Update legal knowledge		
Use informal and formal research to update the legal knowledge required for business compliance	☐	☐
Share updated knowledge with colleagues and incorporate into workplace planning and operations	☐	☐
Did the student's overall performance meet the standard?	☐	☐

Feedback to student and trainer/assessor**Strengths:****Improvements needed:****General comments:****Candidate signature****Date****Assessor signature****Date**

Third Party Statement

Student name:			
Name of third party:		Contact no:	
Relationship to student:	☐ Employer ☐ Supervisor ☐ Colleague ☐ Other Please specify: _____ Please do not complete the form if you are a relative, close friend or have a conflict of interest		
Unit of competency:	Manage legal requirements for business compliance D1.HML.CL10.05 D1.HRM.CL9.14 D2.TRM.CL9.07		
The student is being assessed against industry competency standards and we are seeking your support in the judgement of their competence. Please answer these questions as a record of their performance while working with you. Thank you for your time.			
Do you believe the trainee has demonstrated the following skills? <i>(tick the correct response)</i>	Yes	No	Not sure
Element 1: Research the legal information required for business compliance			
Identify sources of legal information and advice correctly	☐	☐	☐
Access, select and analyse information for relevance to the business	☐	☐	☐
Record and distribute information appropriately	☐	☐	☐
Element 2: Ensure compliance with legal requirements			
Assess the need for legal advice and seek assistance where appropriate	☐	☐	☐
Share information with appropriate work colleagues in a timely manner	☐	☐	☐
Organise information updates and training for colleagues and staff where appropriate	☐	☐	☐
Establish and monitor workplace systems and procedures to ensure compliance with legal requirements	☐	☐	☐
Identify aspects of operations which may infringe licensing laws and solicit advice on how to develop and implement modifications	☐	☐	☐

Do you believe the trainee has demonstrated the following skills? <i>(tick the correct response)</i>	Yes	No	Not sure
Element 3: Update legal knowledge			
Use informal and formal research to update the legal knowledge required for business compliance	☐	☐	☐
Share updated knowledge with colleagues and incorporate into workplace planning and operations	☐	☐	☐
Comments/feedback from Third Party to Trainer/Assessor:			
Third party signature:	Date:		
Send to:			

Competency recording sheet

Name of Student		
Name of Assessor/s		
Unit of Competency	Manage legal requirements for business compliance	D1.HML.CL10.05 D1.HRM.CL9.14 D2.TRM.CL9.07
Date assessment commenced		
Date assessment finalised		
Assessment decision	Pass Competent / Not Yet Competent (Circle one)	
Follow up action required (Insert additional work and assessment required to achieve competency)		
Comments/observations by assessor/s		

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 1: Research the legal information required for business compliance						
Identify sources of legal information and advice correctly						
Access, select and analyse information for relevance to the business						
Record and distribute information appropriately						
Element 2: Ensure compliance with legal requirements						
Assess the need for legal advice and seek assistance where appropriate						
Share information with appropriate work colleagues in a timely manner						
Organise information updates and training for colleagues and staff where appropriate						
Establish and monitor workplace systems and procedures to ensure compliance with legal requirements						
Identify aspects of operations which may infringe licensing laws and solicit advice on how to develop and implement modifications						

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 3: Update legal knowledge						
Use informal and formal research to update the legal knowledge required for business compliance						
Share updated knowledge required for business compliance						
Share updated knowledge with colleagues and incorporate into workplace planning and operations						
Candidate signature:			Date:			
Assessor signature:			Date:			

